



Chris K



**St. Vrain Valley
Community Watchdogs**
neighbors united for clean air

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online at www.geocities.com/~watchdogs

January 13, 2000

Mr. Ron Stewart, Ms. Jana Mendez, Mr. Paul Danish
Board of County Commissioners
PO Box 471
Boulder, Colorado 80306

RECEIVED

JAN 18 2000

Dear Commissioners,

I would like to up-date you on three issues of mutual concern:

Minerals & Geology

Cement Kiln Dust (CKD): We recently received a letter dated October 18, 1999 from Christina L. Kamnikar, Division of Minerals and Geology (DMG) informing us that the division will require interim capping of the CKD in Southdown's disposal site, and that there will be upper limits on the amount of CKD to be stored prior to capping.

The management of CKD has been of great concern to the Watchdogs since the inception of our campaign for improving air quality in north Boulder County. Our photographs of airborne CKD emissions along with the numerous complaints from citizens in the community resulted in a letter from the Air Pollution Control Division to Southdown. This letter directed the company to cover the disposed CKD with a top dressing so that it would not be exposed to the wind. Some residents still remain apprehensive about the possibility that deleterious effects from possible CKD contamination may surface in the future resulting in questions pertaining to its effects on human health, soil contamination, food-chain pathways, farm products, waterways, and so forth. Apprehensions about this substance certainly seem warranted. The Environmental Protection Agency's (EPA) 1999 proposed rule for **Standards for the Management of Cement Kiln Dust** states:

In making its regulatory determination, the EPA evaluated State and Federal regulations pertaining to CKD waste and concluded that more stringent regulation of CKD is necessary based on current regulatory schemes. The Agency also determined that current practices are inadequate to limit contaminant releases and associated risks." (**Federal Register**, August 20, 1999, pp. 45636-37)

Southdown's Five Year Permit Review: The Boulder County Land Use Department is currently conducting the county's five year review of Southdown's permit, Docket SU-93-14. The letter from the Planning Staff to agencies and adjacent property owners regarding this review contains documents from Southdown, but there is absolutely no mention of the problematic issues that citizens continue to make.

"Protect what's closest to your heart: your family, your friends and your lungs."

We respectfully request that a copy of this letter and other pertinent information--especially the photographs and documents on the Watchdogs' web site, stories that appeared in the media, letters from regulatory agencies, the proposed legislation written by Representative Saliman, the letters and support from Senator Campbell, Governor Owens, Mayor Angelo, Ms. Norton, Mr. Brady, Ms. Perkins, Mr. Stout, Mr. Zayach; letters from citizens of this community, and the commissions' own letter of August 17, 1998 that references the "potential serious impact" of Southdown's permit application on citizens of Boulder County" --be included in Docket SU-93-14. We feel that these items are relevant to the Land Use Department's preparation for a review of Southdown's permit "for compatibility, services, environmental impacts, and proposed site plan."

Enclosed is a recent photograph of a fugitive dust plume from Southdown. This photograph was taken on October 6, 1999. Time: 16:09 Wind speed: 50.4 mph We have been told on more than one occasion by personnel at Southdown that there is nothing anyone can do to contain an emission when the wind speed is over 30 mph. We do not stop breathing, however, when these plumes sweep through the area. **Are we to be condemned to these plumes for another 25 years?**

In the December 1999 meeting of the North Boulder County Environmental Health Community Task Force, Southdown stated that the "company's goal for 2000 is to have no complaints." This is a goal that we applaud! In reality, however, three complaints of fugitive dust emissions were filed with the Boulder County Health Department on January 9 at 13:15; 14:35; 16:15 and one complaint on January 11 at 7:50. We respectfully request that the Boulder County Commissioners impose the **highest standards for best management practices and best available technology** at Southdown as additional safeguards for protecting residents of Boulder County.

We also respectfully request that the county planning staff review EPA's technical background document, **Population Risks from Indirect Exposure Pathways and Population Effects from Exposure to Airborne Particles from Cement Kiln Dust**.

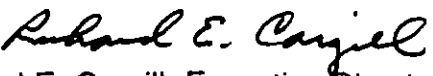
Batch Plant: On November 19, 1999, the Division of Minerals and Geology heard the Watchdogs' "Summary of Objections" to "Lyons Pit; Permit Amendment 006, M-74-015." I asked representatives from Western Mobile why a proposed "batch plant" in M-74-015 had **not** been deleted to reflect consistency with County Resolution 98-32. I was told that this was an oversight and that all references to the batch plant would be deleted from M-74-015.

Mr. Humphries, Supervisor, Minerals Program, explained to this point that there is no one person or agency that reviews state and county permits for consistency of regulations, stipulations, and compliances. Thus, the state may grant revisions without knowing fully the permit stipulations imposed by the Boulder County. Is there anyone on the county planning staff who makes such reviews to insure for

consistency? We respectfully request that the planning staff request verification that the batch plant has been removed from all permits that pertain to this operation.

Best wishes. And **thanks** for all you do to protect the environment and the health of the people in this region.

Sincerely,


Richard E. Cargill, Executive Director

St. Vrain Valley Community Watchdogs' Steering Committee

cc: Senator Ben Nighthorse Campbell
Governor Bill Owens
Representative Todd Saliman
Mayor Nick Angelo, Lyons
Ms. Jane Norton, Director, Colorado Department of Public Health and Environment
Mr. Robert Brady, Chairperson, Air Quality Control Commission
Ms. Margie Perkins, Division Director, Air Pollution Control Division, Colorado Department of Public Health and Environment
Mr. Chuck Stout, Executive Director, Boulder County Health Department
Mr. Jeff Zayach, Coordinator, Environmental Health Program, Boulder County Health Department
Mr. Bruce Humphries, Supervisor, Minerals Program, DMG
Ms. Christina Kamnikar, Environmental Protection Specialist, DMG
Mr. David Callahan, Manager of Planning, Land Use Department
Watchdogs' Steering Committee
Adjacent property owners

STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY
Department of Natural Resources

1313 Sherman St., Room 215
Denver, Colorado 80203
Phone: (303) 866-3567
FAX: (303) 832-8106



Bill Owens
Governor

Greg E. Walcher
Executive Director

Michael B. Long
Director

FAX COVER SHEET (Fax # 303-832-8106)

TO: Paul Banks

CO./AGENCY: Banks & Gesso

No. of Pages Sent: 7

FROM: CL Kennelcar FAX NO.: (303) 274-8329

MESSAGE TO RECIPIENT:

S.J. Vrain Community Watch Dogs

DATE: 1/26/00

PROGRAM: MINS. ☒ COAL ☐ AML ☐ M. SAFETY ☐

TIME TO BE SENT: ASAP ☒ or NIGHT RATE ☐